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File No.: EXP202204501

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

### BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) submitted a complaint to the Spanish Agency for Data Protection on March 22, 2022. The complaint is directed against AYUNTAMIENTO DE LLUCMAJOR with NIF P0703100H (hereinafter, the respondent or the Ayuntamiento). The reasons for the complaint are as follows:

The claimant, a local police officer of the AYUNTAMIENTO DE LLUCMAJOR, states that in December 2021, a PDF document titled "Bajas hasta el 30/11/21" was published on the intranet, accessible to all users, containing the names and surnames of 47 officers, their officer numbers, positions, the days of absence for each, and the annual absenteeism percentage represented. The claimant believes that this information should only be accessible to STAFF members, the Chief of Local Police, and human resources personnel.

The claimant points out that on January 12, 2022, the Chief of Local Police published a circular titled "Bajas e indisposiciones," congratulating the officers who had not been absent and reprimanding and questioning the absences of the other officers. The two referred documents are provided, along with evidence of the publication.

The claimant also states that after consulting the Agency, they were invited to raise the issue with the Data Protection Officer (hereinafter, DPD) of the Ayuntamiento, noting that the respondent has not proceeded with their appointment despite the legal obligation since May 2018.

Finally, they stated that as of the date of the complaint submission, the document remained published.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the Ayuntamiento of Llucmajor for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on April 21, 2022, as noted in the acknowledgment of receipt in the file. On June 24, 2022, the Ayuntamiento requested an extension of the deadline to respond to the forwarding letter, which was granted.

On July 6, 2022, a response letter was received by this Agency from the Ayuntamiento. It included a report from the Ayuntamiento dated July 1, 2022, which, among other aspects, highlights the following: "3. It is not true that a PDF document was published on the Police intranet, accessible to all users, containing personal data regarding the days of absence of the officers.

4. It was verified that the disputed document was temporarily stored in a folder for printing, named "photocopier," where documents are kept before being printed on the photocopier. Evidently, the report was restricted access to the Chief's office and its Staff. It was found that after its editing, due to an error, it was not deleted, as is usually done with this type of file. It was deleted days later upon verifying that the document remained in the mentioned folder and had been accessed by individuals who were not the intended recipients.

5. The document is no longer published nor was it ever published on the Police intranet.

6. Indeed, the Chief published a circular, which generically informed the staff of the overall absenteeism data. We understand that this information is relevant and should be known by all employees of the department, as we are a public service, and high levels of absenteeism hinder satisfactory responses to the needs of the citizenry, while also affecting the working conditions of the entire group, as it can lead, in some cases, to the denial of permits and licenses provided for in the legislation, due to the obligation to prioritize service needs that would otherwise not be met."

THIRD: On June 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by

the claimant was admitted for processing.

FOURTH: On July 13, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the claimant on July 27, 2022, as evidenced in the file.

FIFTH: On August 9, 2022, the claimant filed a voluntary appeal for reconsideration through the Electronic Registry of the AEPD against the resolution issued in the file, expressing their disagreement with the contested resolution and requesting that the processing of the initial complaint continue.

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SIXTH: On February 23, 2023, the appeal filed was sent to the respondent party in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to formulate allegations and present the documents and justifications they deemed appropriate, which has been verified by a response letter dated May 3, 2023.

SEVENTH: On May 31, 2023, the Director of the Spanish Agency for Data Protection issued a decision granting the appeal for reconsideration filed by the claimant.

In the second legal basis of this resolution, it is stated:

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II

Response to the allegations presented

“In the appeal for reconsideration, it is alleged that it is not true that the document was not published on the intranet, since the folder 'photocopier' mentioned is precisely located in the service's intranet, making its use unnecessary for sending a file to print or photocopy.

Furthermore, it is considered that, although the document has been removed, the infringement has already occurred and a sanctioning procedure should be initiated.

Finally, it is emphasized that a Data Protection Officer (DPO) has still not been appointed by the respondent party despite having a legal obligation to do so, which leaves citizens in a state of defenselessness.

In relation to these allegations, the respondent party has informed, in the response to the initial transfer, that the document was placed in a folder accessible to third parties prior to its sending for printing, remaining there by mistake. No statements are made regarding the lack of appointment of a DPO.

According to Article 5.1.f) of the GDPR:

f) processed in such a way as to ensure an appropriate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality').

Furthermore, Article 32 provides:

1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying risks of probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law.

On the other hand, regarding the appointment of a Data Protection Officer, Article 37 of the GDPR provides:

1. The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity; [...]

In response to the hearing procedure, the respondent party has stated the following:

"That it ratifies the entirety of the content of the report signed on 01/07/2022.

Wishing to record a new point [...] the content of the file referred to by the appellant as 'Baixes fins el 30-11-2021' as well as the generic information contained in the circular from the Management, which does not contain

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personal data could be obtained through a review of the "Daily Service" sheets mentioned."

Without making any statement regarding the lack of appointment of a DPD.

Therefore, in the present case, the estimation of the appeal filed is appropriate."

EIGHTH: On November 15, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party, for:

- The alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a), and qualified as very serious for prescription purposes under Article 72.1 a) of the LOPDGDD.

- The alleged infringement of Article 32 of the GDPR, classified under Article 83.4 a), and qualified as serious for prescription purposes under Article 73 f) of the LOPDGDD.

- The alleged infringement of Article 37 of the GDPR, classified under Article 83.4 a), and qualified as serious for prescription purposes under Article 73 v) of the LOPDGDD.

NINTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the accused party.

Article 64.2.f) of the LPACAP - a provision of which the accused party was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the accused party, and the sanction that could be imposed.

Therefore, considering that the accused party has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

#### PROVEN FACTS

FIRST: On December 1, 2021, in the resource management department of the Local Police of the Lluçmajor City Council, a PDF document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was created, which contained the names and surnames of 47 agents, as well as other personal data related to those agents (the agent number, position, days of leave, and percentage of absenteeism), which was published on the intranet of the Lluçmajor City Council.

In several of the screenshots provided by the complainant along with their complaint, it is noted that the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was created on December 1, 2021, at 9:38.

Furthermore, these screenshots reflect that the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was located in the folder named "Plocal" (Local Police) of the Lluçmajor City Council's intranet; some of these screenshots show the access path to that folder.

SECOND: The document "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was initially housed in the folder named "photocopier."

The Lluçmajor City Council acknowledges that the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was not deleted by mistake and remained in the temporary folder named "photocopier" for several days.

In the City Council report dated July 1, 2022, it is highlighted:

"4. It was verified that the disputed document was at one time stored in a temporary folder for printing, named 'photocopier,' where documents are kept before being printed on the photocopier. Evidently, the report was restricted access to the Chief and their Staff. It turned out that after its editing, by mistake, it was not deleted, as is usually done with this type of file. It was deleted days later, upon verifying that the document remained in the mentioned folder and had been accessed by individuals who were not the intended recipients." (the underlining is ours).

THIRD: The Lluçmajor City Council acknowledges that when the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was housed in the photocopier folder, individuals who were not recipients of that document had access to its content:

This is acknowledged by the City Council in its report of July 1, 2022:

"4. It was verified that the disputed document was at one time stored in a temporary folder for printing, named 'photocopier,' where documents are kept before being printed on the photocopier. Evidently, the report was restricted access to the Chief and their Staff. It turned out that after its editing, by mistake, it was not deleted, as is usually done with this type of file. It was deleted days later, upon verifying that the document remained in the mentioned folder and had been accessed by individuals who were not the intended recipients." (the underlining is ours).

FOURTH: When the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was housed in the folder named "Plocal" of that intranet, po-

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They had access to it, among others, the personnel of the Local Police of the City Council.

This is evidenced by the screenshot referred to as annex 2, submitted to the AEPD along with the complaint, which shows the user groups that had access to said document:

- IT
- Local Police
- Local Police Staff
- Administrator
- Administrators

FIFTH: There is no record that the City Council of Lluçmajor has appointed a Data Protection Officer and communicated this to the AEPD.

The file contains a verification carried out by AEPD personnel on April 8, 2022, at 14:40 in the section of the Electronic Headquarters of this Agency called "DPD Inquiry," in which it is verified that the City Council of Lluçmajor has not communicated the contact details of its DPD to this Agency.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Preliminary Issues

The City Council of Lluçmajor, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data - GDPR - and with Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights - LOPDGDD - regarding the processing of personal data it carries out, understanding personal data as "any information relating to an identified or identifiable natural person."

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by reference to an identifier, such as a name, identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Furthermore, "processing" must be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction."

Considering the above, the City Council of Lluçmajor would have processed the personal data of 47 local police officers in the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) concerning which the complaint that has led to this sanctioning file is made.

It carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"data controller" or "controller": the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided by the law of the Union or of the Member States.

Article 4, paragraph 12 of the GDPR broadly defines "personal data breaches" (hereinafter security breach or personal data breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, alteration of, or unauthorized access to personal data transmitted, stored, or otherwise processed."

## III

### Infringement of Article 5.1 f) of the GDPR

Article 5.1.f) of the GDPR, Principles relating to processing, states the following:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures."

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of appropriate technical or organizational measures ("integrity and confidentiality").

In the case examined in this sanctioning file, the complainant claims that in December a document in PDF format was published on the intranet of the City Council with the title "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021).

Along with their complaint, they have submitted the aforementioned document, consisting of two pages, which lists the sick leave of local police officers for the period from January 1 to November 30, 2021. Additionally, the following personal data concerning 47 police officers is included (the officer's number, position, first name and two surnames, days of sick leave, and percentage of absenteeism). Along with their complaint, they have also sent several screenshots. In these, images of the City Council's intranet can be seen, in a folder named "Plocal" (Local Police), where the PDF document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021), created on December 1, 2021, is located.

In the report from the City Council of Lluçmajor dated July 1, 2022, prepared in response to the transfer from the AEPD, it was highlighted:

"3. It is not true that a PDF document was published on the Police intranet, accessible to all users, containing personal data regarding the sick leave of the officers.

4. It was verified that the disputed document was temporarily stored for printing in a folder named 'photocopier,' where documents are kept before being printed on the photocopier. Evidently, the report was restricted to the Chief and their Staff. It was found that after its editing, due to an error, it was not deleted, as is usually done with this type of file. It was deleted days later, upon discovering that the document remained in the mentioned folder and had been accessed by individuals who were not the intended recipients.

5. The document is not published nor was it ever published on the Police intranet.

6. Indeed, the Chief published a circular, which generically informed the staff of the overall absenteeism data. We understand that this information is relevant and should be known by all employees of the department, as we are a public service, high levels of absenteeism hinder a satisfactory response to the needs of the citizens, while also affecting the working conditions of the entire group, as it can lead, in some cases, to the denial of permits and licenses provided for in the legislation, due to the obligation to prioritize service needs that would otherwise not be met."

Therefore, in this report, the City Council acknowledges that the document titled "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021) was not deleted by mistake and remained in the temporary folder named "photocopier" for several days, being accessed by individuals who were not its intended recipients.

From the information in the file, it follows that the aforementioned document, "baixes fins a 30-11-2021" (Sick Leave until 30-11-2021), was initially stored in the folder named "photocopier."

Subsequently, at the time the complainant took the screenshots accompanying their complaint, it was located in the folder named "Plocal" on the City Council's intranet.

In this case, the breach of personal data must be classified as a confidentiality breach, since as a result of it, the data of 47 local police officers would have been improperly exposed to third parties, violating the principle of confidentiality. This circumstance constitutes a violation of the provisions of Article 5.1.f) of the GDPR.

#### IV

Classification and qualification of the infringement of Article 5.1 f) of the GDPR

The aforementioned infringement of Article 5.1 f) of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;"

In this regard, the LOPDGDD, in its Article 71 "Infringements," establishes that "Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Infringements considered very serious" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, those infringements that constitute a substantial violation of the articles mentioned therein are considered very serious and shall be subject to a limitation period of three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Sanction for the infringement of Article 5.1 f) of the GDPR

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Article 83 "General conditions for the imposition of administrative fines" of the GDPR, paragraph 7, establishes:

"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Furthermore, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or processors:

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration (...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it is hierarchically subordinate, where applicable, and to the affected parties who had the status of interested parties, where applicable.

(...)

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Data Protection Agency, it shall publish on its website, with due separation, the resolutions relating to the entities in paragraph 1 of this article, with express indication of the identity of the controller or processor that has committed the infringement.

(...)"

An infringement of Article 5.1 f) of the GDPR is understood to have been committed, proceeding to declare the infringement of the Lluçmajor Town Hall.

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VI

Infringement of Article 32 of the GDPR

Article 32 of the GDPR, on the security of processing, establishes the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context,

and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data (The emphasis is ours).

(...)

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law."

For its part, Recital 74 of the GDPR provides as follows:

"The responsibility of the controller for any processing of personal data carried out by himself or on his behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing as well as the risk to the rights and freedoms of natural persons."

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In this regard, recital 75 of the GDPR lists a series of factors or situations associated with risks to the rights and freedoms of data subjects: (the underlining is ours)

"The risks to the rights and freedoms of natural persons, of varying severity and probability, may arise from the processing of data that could cause physical, material, or immaterial harm, particularly in cases where the processing could lead to issues of discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social harm; in cases where data subjects are deprived of their rights and freedoms or prevented from exercising control over their personal data; in cases where the personal data processed reveal ethnic or racial origin, political opinions, religion or philosophical beliefs, trade union membership, and the processing of genetic data, data concerning health, or data concerning sexual life, or criminal convictions and related security measures; in cases where personal aspects are evaluated, in particular the analysis or prediction of aspects related to performance at work, economic situation, health, personal preferences or interests, reliability or behavior, situation or movements, in order to create or use personal profiles; in cases where personal data of vulnerable individuals, particularly children, are processed; or in cases where the processing involves a large amount of personal data and affects a large number of data subjects." (the underlining is ours)

In the case analyzed in this file, the processing of personal data of the 47 local police officers was not accompanied by appropriate security measures.

The Lucmajor City Council has not provided documentation that proves the existence of appropriate security measures aimed at preventing a personal data breach like the one analyzed in this file from occurring.

As highlighted in legal basis III, the Lluçmajor City Council, in its report of July 1, 2022, prepared in response to the transfer from the AEPD, acknowledged that the document “baixes fins a 30-11-2021” (Deletions until 30-11-2021), by mistake, was not deleted and remained in the temporary folder named “photocopier” for several days, being accessed by individuals who were not the intended recipients. On the other hand, when the document was located in the folder named “Plocal” (Local Police), one of the screenshots sent along with the complaint shows the user groups that had access to that document:

- IT
- Local Police
- Local Police Staff
- Administrator
- Administrators

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It is considered that the known facts constitute an infringement, attributable to the Lluçmajor City Council, for violation of Article 32 of the GDPR.

#### VII

Classification and qualification of the infringement of Article 32 of the GDPR

The aforementioned infringement of Article 32 of the GDPR constitutes one of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Infringements of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and conduct referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall be subject to a limitation period of two years:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679. (...)”

#### VIII

Sanction for the infringement of Article 32 of the GDPR

Article 83 “General conditions for the imposition of administrative fines” of the GDPR, paragraph 7 states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

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Furthermore, Article 77 “Regime applicable to certain categories of data controllers or processors” of

the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

c) The General Administration of the State, the administrations of the autonomous communities, and the entities that comprise the Local Administration

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, with the exception of that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically dependent, where applicable, and to the affected parties who qualify as interested parties, where applicable.

(...)

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions related to the entities mentioned in paragraph 1 of this article, expressly indicating the identity of the controller or processor that has committed the infringement.

(...)”

An infringement of Article 32 of the GDPR is understood to have been committed, proceeding to declare the infringement of the Town Hall of Lluçmajor.

IX

Violation of Article 37 of the GDPR

Public Administrations act as data controllers of personal data and, in some cases, perform functions as data processors as required, following the principle of proactive responsibility, to meet the obligations detailed in the GDPR, which include appointing a data protection officer, making their contact details public, and communicating this to the AEPD.

Paragraphs 1 and 7 of Article 37 of the GDPR refer to these obligations and establish, respectively:

“1. The controller and the processor shall designate a data protection officer whenever:

a) the processing is carried out by a public authority or body, except for courts acting in their judicial capacity;

(...)

7. The controller or the processor shall publish the contact details of the data protection officer and communicate them to the supervisory authority.”

Regarding the appointment of the data protection officer, paragraphs 3 and 5 of Article 37 of the GDPR state:

“3. When the controller or the processor is a public authority or body, a single data protection officer may be designated for several of these authorities or bodies, taking into account their organizational structure and size.

(...)

5. The data protection officer shall be appointed based on their professional qualities and, in particular, their specialized knowledge of data protection law and practice and their ability to perform the tasks specified in Article 39.

6. The data protection officer may be a member of the staff of the controller or the processor or perform their functions within the framework of a service contract.”

For its part, the LOPDGDD dedicates Article 34 to the “Appointment of a data protection officer,” which provides:

“1. Controllers and processors shall appoint a data protection officer in the cases provided for in Article 37.1 of Regulation (EU) 2016/679 (...)

3. Controllers and processors shall communicate within ten days to the Spanish Agency for Data Protection or, where applicable, to the autonomous data protection authorities, the appointments, designations, and terminations of data protection officers both in cases where they are obliged to appoint one and in cases where it is voluntary.”

The file contains a verification carried out by AEPD staff on April 8, 2022, at 14:40 in the section of the Electronic Headquarters of this Agency.

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referred to as “DPD Consultation.” It is verified that the Lluçmajor Town Council has not communicated the contact details of its DPD to this Agency. It is considered that the Lluçmajor Town Council has not designated a DPD as there is no record of the notification of their appointment or designation to this Agency, which is mandatory.

As indicated, the GDPR stipulates that the data controller and processor must designate a DPD in cases where “the processing is carried out by a public authority or body,” and they must “publish the contact details of the data protection officer and communicate them to the supervisory authority.”

The known facts constitute an infringement, attributable to the Lluçmajor Town Council for violating Article 37 of the GDPR, “Designation of the data protection officer.”

X

Classification and Qualification of the Infringement

The aforementioned infringement of Article 37 of the GDPR constitutes the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 2% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements,” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

v) The failure to comply with the obligation to designate a data protection officer when their appointment is required in accordance with Article 37 of Regulation (EU) 2016/679 and Article 34 of this organic law.”

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Sanction for the infringement of Article 37 of the GDPR

Article 83 “General conditions for the imposition of administrative fines” of the GDPR, paragraph 7,

establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or for which they are processors:

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration (...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically dependent, where applicable, and to the affected parties who had the status of interested parties, where applicable.

(...)

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

6. When the competent authority is the Spanish Agency for Data Protection, it shall publish on its website, with due separation, the resolutions relating to the entities referred to in paragraph 1 of this article, expressly indicating the identity of the controller or processor that has committed the infringement.

(...)

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It is understood that an infringement of Article 37 of the GDPR has been committed, proceeding to declare the infringement of the Town Hall of Lluçmajor.

XII

Having confirmed the infringements, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

It is warned that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF LLUCMAJOR, with NIF P0703100H:

- Has infringed the provisions of Article 5.1.f) of the GDPR, an infringement classified in Article 83.5 of

the GDPR.

- Has infringed the provisions of Article 32 of the GDPR, an infringement classified in Article 83.4 of the GDPR.

- Has infringed the provisions of Article 37 of the GDPR, an infringement classified in Article 83.4 of the GDPR.

SECOND: TO ORDER the TOWN HALL OF LLUCMAJOR, with NIF P0703100H, to, pursuant to Article 58.2.d) of the GDPR, within six months, demonstrate compliance with the following measures:

1. The appointment of a Data Protection Officer and the communication of such appointment to the AEPD.

2. The adoption by the Town Hall of management measures for information systems aimed at preventing undue dissemination of personal data.

THIRD: TO NOTIFY this resolution to the TOWN HALL OF LLUCMAJOR.

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FOURTH: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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